

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS AND A
COMMISSION ON PROFESSIONAL COMPETENCE FOR THE
GARDEN GROVE UNIFIED SCHOOL DISTRICT
STATE OF CALIFORNIA**

In the Matter of the Statement of Charges against:

MIKE BARTON,

Respondent.

OAH No. 2024080699

DECISION

This matter was heard by the Commission on Professional Competence, (Commission) on March 5 and 6, 2025, in Garden Grove, California. The Commission consisted of Steven Little, Jose Manuel Carcido, and Glynda B. Gomez, Administrative Law Judge (ALJ), with the Office of Administrative Hearings (OAH), State of California.

Garden Grove School District (District) was represented by Anthony P. De Marco and Jacquelyn Takeda Morenz, Atkinson, Andelson, Loya, Ruud & Romo, Attorneys at Law. Jason Bevacqua, Assistant Superintendent, was also present.

Mike Barton (Respondent) was present and represented by Arthur Four, Reich, Adell & Cvitan, Attorneys at Law.

Before presentation of evidence, the ALJ heard argument on the District's Renewed Motion for Remote Testimony of Witness [REDACTED] (also referred to as [REDACTED]) and

█). After argument, the ALJ granted the motion based upon the witness being unavailable and living in Mexico. However, AM did not provide any testimony.

Testimony and documentary evidence were received, and argument was heard. The matter was submitted for decision on March 6, 2025. The Commission considered the matter in executive session. After due consideration of the entire record herein, the Commission makes the following factual findings, legal conclusions, and order.

Before the hearing, District moved for a protective order to protect the identity of student witnesses whose names were contained on a list of Confidential Names. Respondent did not oppose the motion, the motion was granted, and the ALJ issued an order having the student witnesses identified in all publicly available documents, including any future transcript, according to their initials as contained on the Confidential Names list and the Confidential Names list was sealed pursuant to the protective order.

FACTUAL FINDINGS

Jurisdictional Matters

1. Respondent was, at all times relevant herein, a permanent certificated employee of the District assigned to La Quinta High School.
2. On July 5, 2024, the District served Respondent with a Notice of Proposed Recommendation for 30-day Suspension, and draft Statement of Charges.
3. On July 17, 2024, District filed a Statement of Charges against Respondent, charging him with immoral conduct (Education Code sections 44932, subdivision (a)(1), and 44939), evident unfitness for service (Education Code section

44932, subdivision (a)(5)), and persistent violation of and/or refusal to obey the school laws of the state or reasonable regulations prescribed for the government of the public schools by the State Board of Education or by the governing board of the school district employing him, within the meaning of Education Code section 44932, subdivision (a)(8). Respondent timely filed an appeal and request for hearing. All jurisdictional requirements have been met.

The Incident

4. On April 17, 2024, student [REDACTED] filed a report on the District's STOP IT Application (App). The STOP IT App incident report states, "[t]eacher is unsafe and impractical." The "Incident Type" was listed as "Threat toward Student." The incident was described as: "[Respondent] the Fundamentals of Business teacher pulled a knife on 3rd period students twice, 1st time just showing off the knife to class, 2nd time he walked up to a student saying he would cut their finger off and walked up to the student with knife out and grabbed his hand then slammed his knife against the table by his hand. Not only has he pulled out a knife though but another time he had bent over and starting moaning loudly throughout the class to act as if he was giving birth." (Ex.7.) According to [REDACTED]'s STOP IT report, the "entire class" saw the incident and it "happened possibly few months ago (2-3) some students were originally planning on waiting [un]til the district made their visit to are [sic] school to tell them when they pulled us out of are [sic] class." (Ex. 7.)

5. At the administrative hearing, student [REDACTED] testified that he had a "decent" relationship with Respondent. [REDACTED] made the STOP IT app report because he was angry when Respondent denied his request to leave the class to use the restroom and wanted Respondent to suffer some consequences for not letting him leave class.

6. Several students were present and witnessed the incident [REDACTED] described. They provided evidence based upon their view points and perspectives from various locations in the classroom. Generally, each of the witnesses described an incident in their third period Business class in which Respondent had a buck knife (sometimes erroneously referred to by students as a switch blade knife) out in class joking around with student [REDACTED].

7. The incident occurred in approximately January of 2024. At the time, [REDACTED] was seated next to [REDACTED] and was engaged in conversation with [REDACTED]. Respondent was lecturing the class with his back to [REDACTED] and [REDACTED]. Respondent turned and saw [REDACTED] and [REDACTED] talking. When Respondent looked at [REDACTED] and [REDACTED], [REDACTED] became quiet but [REDACTED] did not see Respondent looking at them and continued talking.

8. As was his longstanding habit, Respondent had a folding buck knife in his pocket. The students were aware of Respondent's buck knife because he had referenced the knife in some curriculum-related stories. At some point, Respondent took the knife from his pocket and opened it. The knife had an approximately two and a half to three inch blade which folded into its handle. According to the credited testimony of [REDACTED], who sat next to [REDACTED] Respondent approached [REDACTED] in a "joking" manner about his inattention to class. Although the exact conversation between the two was not established by the evidence presented at hearing, it was established that [REDACTED] made a comment to the effect that the knife could not cut anything. In response to the comment, Respondent told [REDACTED] to put his hand on the table. [REDACTED] did so and Respondent slammed the knife onto the Formica or solid surface table making a very loud sound. Although the blade had been open briefly and pointed up and outward before Respondent slammed the knife down, Respondent closed it before it hit the table. Most students did not see the knife hit the table, but heard the loud noise and

several were uncomfortable with Respondent's actions [REDACTED], who had the best view of the knife, described it as having ever only been "barely out" and considered the whole incident a joke.

9. Respondent and [REDACTED] were both prone to joking behavior and were very familiar with each other. Respondent had been a coach on [REDACTED]'s older sister's sports team.

10. There was no evidence that Respondent ever touched [REDACTED], that the knife ever touched [REDACTED] or that [REDACTED] was injured in anyway.

Respondent's Evidence

11. Respondent provided credible testimony on his own behalf. He has been a teacher with the District for approximately 27 years (26 years at La Quinta High School). After the incident, Respondent was moved to a different school. Until the incident, he had never been disciplined and has received consistently positive evaluations. While at La Quinta High School, he was a Social Studies and Business teacher. He also coached soccer, softball and football for boys and girls at various times throughout his tenure at La Quinta High School.

12. Respondent has carried a pocket buck knife for many years at La Quinta High School. According to Respondent, he used the knife as cutlery to cut fruit and vegetables and has used it for utility purposes to cut face masks and athletic tape at various times. Because Respondent has Diabetes which requires him to eat more frequently, he has often used the knife to prepare snacks.

13. Respondent was not aware that he was violating District policy by having the knife. Respondent acknowledges that he had the knife in his classroom, took it out

during class time, and used poor judgement when joking around with student [REDACTED]. Respondent does not remember the knife being open when he put it down on the table and did not think [REDACTED] was afraid at the time. In retrospect, Respondent regrets his actions and acknowledges his poor judgment. Respondent does not take the buck knife to work with him anymore. He leaves it at home in his fishing tackle box.

14. Respondent provided character reference letters from friends, colleagues and members of his community and notes from some of his students. The common themes of the references and notes are that Respondent is a dedicated teacher, an ethical person and a fun-loving person who enjoys life and serving others. (Exs. C-U.)

15. Respondent provided character reference testimony from three witnesses (the maximum permitted by a Pre-Hearing Conference Order).

16. Andrew Watson, the Youth Director at Saint Simon and Jude Church within the Orange County Diocese, has known Respondent for approximately four years. He provided character testimony on behalf of Respondent. The two met through their church's work at an orphanage in Mexico. They were also part of a trip to Poland to help refugees from the Ukraine, and taught faith formation classes and retreats for high school/youth groups. Mr. Watson opined that Respondent is a consistent and dedicated volunteer with the church youth groups and works well with high school students and young adults.

17. Jason Rodewald also provided testimony about Respondent's character. Mr. Rodewald was Respondent's colleague. He has been a Physical Education teacher at La Quinta High School for 26 years and has known Respondent for all of that time. He met Respondent while they were both coaching La Quinta High School sports teams and teaching at the school. He referred to Respondent as his "work wife." They

coached boys football together and they each coached a soccer team. He described Respondent as a "jokester" whose "heart is gold" and who was "empathetic" and "compassionate." He was aware that Respondent had a small folding knife, but expressed that he would be surprised if Respondent brought it out in class. Nevertheless, he had no concerns about Respondent.

18. Kenneth Elliott, an English teacher at La Quinta High School for twenty years, testified about his experiences with Respondent. He was aware that Respondent had a small folding knife that he used for cutting fruit and vegetables. He described Respondent as someone with a "big personality" who was "loud" and "fun to be around." Mr. Elliot described Respondent as "a smart guy," "a good person" and "very religious."

Board Policies, Standards and Legal Mandates

19. District Board Policy 4014 , Professional Standards and Expectations of All Personnel, provides:

"Inappropriate employee conduct" includes, but is not limited to:

1. Engaging in any conduct that endangers students, staff, or others, including, but not limited to, physical violence, threats of violence, or possession of a firearm or other weapon.
2. Engaging in harassing or discriminatory behavior towards students, parents, guardians, staff, or community members, or failing or refusing to intervene when an act of

discrimination , harassment, intimidation or bullying against a student is observed.

(Ex. 3.)

20. District Board Policy 5155, Corporal Punishment, provides:

Corporal punishment shall not be allowed in the Garden Grove Unified School District. Students shall be held accountable for their conduct. A teacher, administrator, or other certificated employee of the district shall not be subject to criminal prosecution or penalties for the exercise of assigned duties or for using the degree of physical control reasonably necessary to maintain order, or protect the health and safety of pupils, to protect oneself, to protect property, and to maintain proper conditions conducive to learning. This does not include the right to spank a child.

(Ex. 3.)

21. Standard 2 of the California Standards for the Teaching Profession, Creating and Maintaining Effective Environments for Student Learning, provides:

Teachers promote social development and responsibility with a caring community where each student is treated fairly and respectfully. They create physical or virtual learning environments that promote student learning, reflect diversity, and encourage constructive and productive

interactions among students. They establish and maintain learning environments that are physically, intellectually, and emotionally safe. Teachers create a rigorous learning environment with high expectations and appropriate support for all students. Teachers develop, communicate, and maintain high standards for individual and group behavior. They employ classroom routines, procedures, norms, and supports for positive behavior to ensure a climate in which all students can learn. They use instructional time to optimize learning.

(Ex.3.)

22. Education Code sections 49000 and 49001 prohibit corporal punishment against school age children in public schools. Education Code section 49001, subdivision (a), provides that "corporal punishment" means "the willful infliction of, or willfully causing the infliction of, physical pain on a pupil."

23. As a teacher at La Quinta High School, Respondent was aware of Board policies 4014 and 5155, the California Standards for the Teaching Profession and the Education Code prohibition against corporal punishment.

LEGAL CONCLUSIONS

Jurisdiction

1. The Commission has jurisdiction to proceed in this matter under Education Code section 44944.

Burden of Proof

2. In this case, the District has the burden of proving the allegations set out in the Statement of Charges by a preponderance of the evidence. (*Gardner v. Commission on Professional Competence* (1985) 164 Cal.App.3d 1035, 1039-1040.) Preponderance of the evidence means that “the evidence on [the District’s] side outweighs, preponderates over, is more than, the evidence on the other side.” (*Glage v. Hawes Firearms Co.* (1990) 226 Cal.App.3d 314, 325.)

3. It is settled that the trier of fact—in this case the three members of the Commission—may “accept part of the testimony of a witness and reject another part even though the latter contradicts the part accepted.” (*Stevens v. Parke Davis & Co.* (1973) 9 Cal.3d 51, 67.) The trier of fact may also “reject part of the testimony of a witness, though not directly contradicted, and combine the accepted portions with bits of testimony or inferences from the testimony of other witnesses thus weaving a cloth of truth out of selected material.” (*Id.*, at 67-68, quoting from *Neverov v. Caldwell* (1958) 161 Cal.App.2d 762, 767.) The testimony of “one credible witness may constitute substantial evidence.” (*Kearl v. Board of Medical Quality Assurance*, 189 Cal.App.3d 1040, 1052.)

Grounds for Discipline

4. The grounds for dismissal or suspension of a teacher in California are enumerated in Education Code section 44932. In this case, the District relies on the grounds set forth Education Code sections 44932, subdivision (a)(1), and 44939 (immoral conduct), Education Code section 44932 (a)(5) (evident unfitness for service), and persistent violation of or refusal to obey the school laws of the state or reasonable regulations prescribed for the government of the public schools by the State Board of

Education and/or by the governing board of the school district employing him (Education Code section 44932, subdivision (a)(8)). For the reasons set forth below, the Commission determined that Respondent violated Education Code section 44932, subdivision (a)(8), and a suspension of five (5) days should be imposed rather than the proposed 30 days.

Persistent Violation of School Laws and Regulations

5. In order for a teacher to be suspended under section 44932, subdivision (a)(8), for violations of school laws or rules, the violations must be either "persistent" or "motivated by an attitude of continuous insubordination." (*Gov. Board of Oakdale Union School District v. Seaman* (1972) 28 Cal.App.3d 77, 81.) Isolated events or incidents involving an issue unresolved over a period of time are generally not considered persistent violation of rules. (*Bourland v. Commission on Professional Competence* (1985) 174 Cal.App.3d 317.) In this case, the preponderance of the evidence established that Respondent routinely carried a buck knife with him at school and on more than one occasion brought it out in class and joked around with the knife. In the incident at issue in this case, Respondent violated Board Policy 4014, 5155 and Standard 2 of the California Standards for the Teaching Profession by regular possession of the buck knife, displaying it in class with the blade open, and using the buck knife to get AM's attention regardless of whether it was intended as a joke and slamming the knife down on AM's desk, disturbing AM and other students.

6. Cause exists for Respondent's suspension, pursuant to section 44932, subdivision (a)(8), for persistent violation of school laws and regulations.

IMMORAL CONDUCT

7. "The term 'immoral' has been defined generally as that which is hostile to the welfare of the general public and contrary to good morals. Immorality has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare. [Citation.]" (*Orloff v. Los Angeles Turf Club* (1951) 36 Cal.2d 734, 740; see also *Board of Education of San Francisco Unified School Dist. v. Weiland* (1960) 179 Cal.App.2d 808, 811 (*Weiland*)). The Commission finds respondent's conduct was inappropriate, but it did not rise to the level of immoral conduct, as defined by case law.

8. Cause does not exist for Respondent's suspension pursuant to sections 44932, subdivision (a)(1), and 44939, for immoral conduct.

Evident Unfitness for Service

9. Evident unfitness for service means "clearly not fit, not adapted to or unsuitable for teaching, ordinarily by reason of temperamental defects or inadequacies." (*Woodland Joint Unified School Dist. V. Commission Professional Competence* (1992) 2 Cal.App.4th 1429, 1444.) Evident unfitness for service "connotes a fixed character trait, presumably not remediable merely on receipt of notice that one's conduct fails to meet the expectations of the employing school district." (*Id.*) Respondent is not evidently unfit to teach. He has been a dedicated teacher for nearly three decades demonstrating commitment inside and outside the classroom and in the community. Most importantly, he acknowledges his misconduct and expressed

remorse and regret demonstrating that his misconduct was an aberration and not a reflection of an immutable character trait.

10. The case of *Morrison v. State Board of Education* (1969) 1 Cal.3d 214, 229, sets forth the following factors for determining a teacher's fitness to teach: (1) the likelihood that the conduct may have adversely affected students or fellow teachers; (2) the degree of such adversity anticipated; (3) the proximity or remoteness in time of the conduct; (4) the type of certificate held by the teacher; (5) extenuating or aggravating circumstances surrounding the conduct; (6) the praiseworthiness or blameworthiness of the motives resulting in the conduct; (7) the likelihood that the conduct in question will recur; and (8) the extent that discipline will cause an adverse chilling impact on the constitutional rights of the teacher involved or other teachers.

11. Based on application of the *Morrison* factors, the Commission finds that respondent's conduct is related to teaching and respondent's fitness to teach. The *Morrison* factors apply in respondent's case as follows:

(1) The likelihood the conduct may adversely affect students or fellow teachers. Respondent's conduct adversely affected students. No evidence was presented of any adverse effect on respondent's fellow teachers. Respondent's conduct made some students feel concerned and uncomfortable.

(2) The degree of such adversity. Respondent's conduct involved students and occurred on campus during school hours and caused a minor degree of adversity towards the involved students.

(3) The proximity or remoteness in time of the conduct. Respondent's conduct was not remote in time, having occurred in approximately January of 2024.

(4) The type of teaching certificate held by the party involved.

Respondent is appropriately credentialed for the subjects he taught.

(5) The existence of extenuating or aggravating circumstances, if any, surrounding the conduct. The Commission finds no aggravating or extenuating circumstances surrounding respondent's conduct in this case.

(6) The praiseworthiness or blameworthiness of the motives resulting in the conduct. The Commission finds no praiseworthiness in Respondent's motives for his conduct. Although Respondent was joking and did not intend to harm any students, his conduct was irresponsible and blameworthy.

(7) The likelihood of recurrence of the questioned conduct. The Commission finds there is a minimal or no likelihood of recurrence of Respondent's conduct. Respondent no longer carries a buck knife on school grounds and expressed regret and remorse for his conduct.

(8) The extent discipline may cause adverse impact or chilling effect upon the constitutional rights of the teacher involved or other teachers. Not applicable.

12. Having determined that Respondent's conduct relates to teaching, the Commission must next determine whether Respondent's conduct demonstrates he is unsuitable for teaching because of a temperamental defect or inadequacy. Here, the Commission finds the preponderance of the evidence did not establish Respondent's conduct was due to a temperamental defect. Instead, it established that Respondent took a joke too far and in doing so used poor judgement. Therefore, cause for suspension for evident unfitness for service under section 44932, subdivision (a)(6), was not established.

Disposition

13. It is the unanimous conclusion of the Commission that Respondent has not engaged in immoral conduct, within the meaning of Education Code sections 44932, subdivision (a)(1), and 44939.

14. It is the unanimous conclusion of the Commission that the preponderance of the evidence established Respondent persistently violated and/or refused to obey the school laws of the state or reasonable regulations prescribed for the government of the public schools by the State Board of Education by the governing board of the school district employing him in violation of Education Code section 44932, subdivision (a)(8), by violating Board policies 4014 and 5155 and Standard 2 of the California Standards for the Teaching Profession.

15. It is the unanimous conclusion of the Commission that Respondent is not evidently unfit for service as a teacher, within the meaning of Education Code section 44932, subdivision (a)(6).

16. Respondent took a joke too far and exercised poor judgement, for which he has expressed his regret and remorse. The Commission finds that Respondent's conduct warrants discipline, but not as severe as the District seeks to impose. District seeks to impose a 30-day suspension on Respondent based upon four alleged causes for discipline. After consideration of all evidence, the Commission determined that the District prevailed on only one cause for discipline. Based upon the evidence presented, the Commission finds that a five (5) day suspension is sufficient to discipline Respondent for his actions and appropriately address his conduct. A thirty day suspension is unwarranted and unduly punitive in light of Respondent's long record of

exceptional service as a teacher and his service to the school community when the circumstances of his misconduct are examined.

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ORDER

1. The Statement of Charges against Respondent Mike Barton is sustained as to Cause for Discipline (C), persistent violation of or refusal to obey the school laws of the state or reasonable regulations prescribed for the government of public schools by the State Board of Education or by governing board of the school district employing him or her, within the meaning of Education Code section 44932, subdivision (a)(8).

2. All other causes for discipline set forth in the Statement of Charges are dismissed.

3. The suspension of Respondent Mike Barton is upheld, but reduced from 30 days to five (5) days.

DATE: 05/06/2025


Steven Little (May 6, 2025 12:09 PDT)

STEVEN LITTLE

Commission Member

DATE: 05/07/2025


Jose Manuel Carcido (May 7, 2025 15:20 PDT)

JOSE MANUEL CARCIDO

Commission Member

DATE: 05/07/2025



GLYNDA B. GOMEZ

Administrative Law Judge

Office of Administrative Hearings